

Ref No.: BD-ACEPM-SAMCO-LET-018

Date: Wednesday, 3rd of December 2025

To: SAMCO National Construction Company
Attention: Eng. Mohammed Sami Mohammed (Project Manager)

Project Name: The Big Business District
Contract/Package: Construction Works of the Civil Works for Buildings B1, B2, B3 and B4

Subject: Delay in Submission of the Programme

Reference (S):

- 1) Contractor's Submittal Ref. BD-CW-SAMCO-ACE-DS-STR-003 *003* *003*

Dear Sirs,

This letter is issued to address your delay in resubmitting the modified Project Programme in accordance with Sub-Clause 8.3 of the Contract. The Contract stipulates that the Contractor shall obtain the Engineer's approval on the Project Programme within (45) days from the Effective Date. Furthermore, Sub-Clause 8.3 and the Particular Conditions require the Contractor to submit the detailed Time Schedule within (21) days from the Commencement Date. Despite these requirements, the Contractor submitted the first Programme on 4 October 2025, and the Engineer issued review comments on 12 October 2025.

The submission on 4 October 2025 was already two days later than the contractual deadline. To date, however, you have not resubmitted a modified Programme stipulated the Engineer's comments issued on 12 October 2025. This constitutes continued non-compliance with Sub-Clause 8.3 and the Particular Conditions. The absence of an approved Programme prevents the proper evaluation of planned versus actual progress and obstructs the assessment of sequencing, methodology, and overall execution planning for the Works.

This ongoing delay also impacts your ability to demonstrate compliance with the Time for Completion and may consequently expose you to delay damages under Sub-Clause 8.7 (Delay Damages) should the progress of the Works be affected. Continued non-compliance may also necessitate further action under Sub-Clause 8.6 (Rate of Progress).

You are therefore instructed to submit a fully revised and compliant Programme without further delay. The revised submission must address all comments issued on 12 October 2025 and comply fully with the provisions of Sub-Clause 8.3 and the Particular Conditions.

Yours faithfully,

Eng. Abdelaziz Mohammed



Attachment(s): N/A

CC:

Eng. Mostafa Gala – Owner representative